

Andhra Pradesh Revision of Market Value Guidelines Rules, 1998

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State of Andhra Pradesh - Act

Andhra Pradesh Revision of Market Value Guidelines Rules, 1998

ANDHRA PRADESH

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Andhra Pradesh Revision of Market Value Guidelines Rules, 1998

Rule ANDHRA-PRADESH-REVISION-OF-MARKET-VALUE-GUIDELINES-RULES-1998 of 1998

Published on 21 June 1997

Commenced on 21 June 1997

[This is the version of this document from 21 June 1997.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh Revision of Market Value Guidelines Rules, 1998

Published vide G.O.Ms.No. 301, Revenue (Registration 2), dt 4-5-1998

In exercise of the powers conferred by Section 47-A of the Indian Stamp Act, 1899 (Central Act H of 1899) and of all other powers hereunto enabling and in supersession of the Andhra Pradesh Revision of Market Value Guidelines Rules, 1997 issued in G.O.Ms.No. 530, Revenue (Regn. I) Department, dated 21st June, 1997, the Governor of Andhra Pradesh hereby makes the following rules:

1.

Short title and commencement:

- These rules may be called the Andhra Pradesh Revision of Market Value Guidelines Rules, 1998.

2.

Commencement:

- They shall come into effect from the date of publication of the rules in the Andhra Pradesh Gazette.

3.

Definitions:

- In these rules, unless the context otherwise, requires:

(a)

"Act" means the Indian Stamp Act, 1899 (Act No. 2 of 1899);

(b)

"Committee" means a committee constituted under these Rules;

(c)

"Format" means appended to these Rules;

(d)

"Market value Guidelines" means the set of values of immovable properties in different villages, Municipalities, Corporations and other local areas in the State, arrived at by the respective Committees, from time to time in terms of these Rules and incorporated in the registers prescribed.

(e)

"Registering Officer" means the Registering Officer appointed under the Indian Registration Act, 1908 (Central Act XVI of 1908).

4.

(1)

Central Valuation Advisory Committee:

- (i) A Central Valuation Advisory Committee with the following composition shall be constituted to evolve general or specific guidelines from time to time for revision of Market values for the use of the Committees constituted under Rule 4

(2):

Chairman:- Commissioner and Inspector General of Registration and Stamps.

Members:- (1) Secretary to Commissioner of land Revenue;

(2)

Commissioner and director of Agriculture;

(3)

Commissioner and Director of Horticulture;

(4)

Chief Engineer (Roads and Building);

(5)

Commissioner and Director of Municipal Administration;

(6)

Director of Town Planning.

Convenor:- (i) [Joint Inspector General of Registration and Stamps]

[Substituted for the words "Additional Inspector General of Registration and Stamps" by G.O.Ms. No. 758, Rev. (Reg-I) Dated 28.10.1999.]

O/o. the Commissioner and Inspector General of Registration and Stamps.

(ii)

The following shall be the terms of reference of the Committee:

(a)

to evolve guidelines for fixation of market values in respect of different categories of land like agricultural land, Urban Land, Industrial Area, Mining, Plantation, commercial, non-agricultural land etc.

(b)

to collect information in connection with achieving the above objective.

(c)

to undertake tours within the State as may be required for evolving the Guidelines.

(iii)

The Central Valuation Advisory Committee shall consult the following organisations, registered bodies for obtaining their opinion on the growth rate, market conditions, elasticity of demand and other factors relevant for evolving general

guidelines for the revision:

(1)

Builders Forum, Hyderabad (Regd. No. 8628).

(2)

Andhra Pradesh Real Estates Developers Association (APREDA) Hyderabad (Regd. No. 224/95).

(3)

Institution of Valuers (Local Chapter) Hyderabad-28 (Regd. No. 21/1860).

(4)

Federation of Andhra Pradesh Chambers of Commerce & Industry, Hyderabad (Regd. No. 1030/1964-65).

(5)

Bar Council Andhra Pradesh High Court, Hyderabad.

(iv)

The Advisory Committee shall meet in the month of May of every year for giving advice for revision of values pertaining to (i) Urban areas covered by Rules 4 (2)(a), 4 (2)(b) and (ii) for Buildings, Apartments and structures covered by Rule 4 (2)(d), and shall meet in the month of December of every alternate year, for rural areas covered by Rule 4 (2)(c).

(2)

The Authority Competent to prepare Market Value Guidelines:- The following shall be the authorities competent to prepare the Market Value Guidelines in different areas:

(a)

Urban Areas: i.e., areas falling within the jurisdiction of Municipality/ Municipal Corporations, Urban Development Authorities, Municipalities and Notified areas including the Gram Panchayat falling within their master plan areas and urban agglomeration areas:

Chairman:- Joint Collector of the District.

Members:- (i) Commissioner of Municipal Corporation or his authorised representatives;

(ii)

Vice-Chairman of Urban Development Authorities or his authorised representatives;

(iii)

Chief Executive Officer of the Zilla Praja Parishad (Chief Planning Officer in respect of Hyderabad District);

(iv)

[Commissioner of Municipality.]

[Added by G.O.Ms.No. 54 Rev. (Reg. I) Dept., Dated 18.01.1999.]

Convenor:- [Sub-Registrar concerned.]

[Substituted for "Assistant District Registrar, Office of the District Registrar concerned" by G.O.Ms.No. 643, Rev. (Regn.-I), Dated 1.7.2009.]

(b)

In respect of Secunderabad Cantonment:

Chairman:- District Collector, Hyderabad Members:- (i) Joint Collector, Hyderabad;

(ii)

Chief Executive Officer of Secunderabad Cantonment Board;

(iii)

Chief Executive Officer, Zilla Praja Parishad, Ranga Reddy District.

Convenor:- [Sub-Registrar concerned.]

[Substituted for "Asst. District Registrar" by G.O.Ms.No. 643, Rev. (Regn.-I), Dated 1.7.2009.]

[The above committees shall also fix composite values/covering land and structure on square feet basis for Apartments/ Flats/Portion of a multi-stored building or part of such structure to which the provisions of the Andhra Pradesh Apartments (promotion of construction and ownership) Act, 1987 applies. The committee shall take into consideration the structure rates fixed by the committee appointed under Rule 4 (2) (d).]

[Added by G.O. Ms. No. 720 Rev (Regn. I) Dept., Dated 30.7.2010.]

(c)

Rural Areas:— i.e. areas falling within Gram Panchayat (other than the Gram Panchayat falling within the areas covered by the master plan of any Municipal Corporation or Municipality, Notified Nagar Panchayat or falling under the Urban

agglomeration of any Urban Development Authority).

Chairman:— Revenue Divisional Officer concerned.

Members:—(i) Mandal Revenue Officer concerned.

(ii)

Mandal Development Officer concerned.

(iii)

[District Registrar/Sub-Registrar (Market Value & Audit) concerned.]

[Added by G.O. Ms. No. 600 Rev. (Regn. I) Dated 18.4.2008.]

Convenor:— Sub-Registrar concerned.

(d)

For revision of construction rates of Buildings, Apartments and Structures for the entire State,—

Chairman:—[Joint Inspector General]

[Substituted for the words "Additional Inspector General" by G.O.Ms.No. 750, Rev. (Reg-1) Dated 28.10.1999.]

, Office of the Commissioner and Inspector General of Registration and Stamps, Andhra Pradesh, Hyderabad.

Member:- Superintending Engineer, Office of the Chief Engineer (R&B), Andhra Pradesh, Hyderabad.

Convenor:— [Assistant Inspector General of Registration and Stamps (who is dealing with Market Value subject)]

[Substituted for "Deputy Inspector General (Market Value & Audit) by G.O.Ms.No. 600, Rev. (Regn.-I), Dated 18.4.2008.]

Office of the Commissioner and Inspector General of Registration and Stamps, Andhra Pradesh, Hyderabad.

5.

[Periodicity of revision and date of Implementation:- The periodicity of revision of Market Value Guidelines and the effective dates for implementation of the same shall be as under:—]

[Substituted for Rule 5 by G.O.Ms.No.509, Revenue (Regn.I) Dated 1.5.2006.]

[TABLE]

[Substituted for Table by G.O.Ms. No. 643, Rev. (Regn.I), Dated 1.7.2009.]

S.No.

Category of Area

Periodicity of Revision

Date of Implementation

1.

Urban areas covered by Rule 4(2)(a).

Every year

1st August

2.

Secunderabad Cantonment Area Covered by Rule 4(2)(b).

Every year

1st August

3.

Rural area covered by Rule 4(2)(c)

Once in alternative year

1st August

4.

Building Apartments and structures covered by Rule 4(2)(d).

Every year

1st August

6.

Procedure to prepare Market Value Guidelines Registers:

- While working out values of land and buildings, the Committees shall take into account the established principles of valuation mentioned in the Rule 5 of Andhra Pradesh Stamp (Prevention of Undervaluation of Instruments) Rules, 1975 and any other factors that they may deem necessary like condition of real estate market, interest rates and loaning activity of Housing Finance Institutions/Banks, Inflation rate, price of building material, Government policies on Town Planning, Building construction, Urban Development and prices of agricultural produce.

7.

[Formats for the Registers:

[Substituted G.O.Ms. No.720 Rev. (Regn. 1) Dept., Dated 30.7.2010.]

— The formats for the registers of Market value Guide lines pertaining to Urban Properties shall be in Form I and Form -II and registers pertaining to Rural Properties shall be in From-III and Form-IV.]

8.

Supply of Market Value Guideline Registers to various Officers:

(1)

The Market Value guidelines prepared as per Rules 6 and 7 shall be made available to each Sub-Registrar by the Convenors of the Committees.

(2)

The Sub-Registrar shall cause supply of copy of relevant portion thereof to the following Officers:—

(i)

Tasildar;

(ii)

Mandal Development Officer;

(iii)

Gram Panchayat;

(iv)

Municipal Council.

(3)

One copy of the Guidelines shall be exhibited at a conspicuous place in the Office of the Sub-Registrar and District Registrar for use of public.

9.

Powers of Special Revision:

(1)

Notwithstanding anything contained in these Rules, the Commissioner and Inspector General of Registration and Stamps may order for a special revision of Market Value Guidelines in any specified area under the following circumstances leading to sudden appreciation of land values:

(a)

Setting up of an Industry or group of Industries or Infrastructural projects.

(b)

Development of large scale housing projects.

(c)

Development of Ayacut under irrigation projects.

(d)

Any other special circumstances having an impact on the values of immovable property in any specified area.

(2)

In cases covered by [sub-rule (1) above]

[Substituted for "sub-rule (2) of Rule 4" by G.O.Ms.No. 54 Rev. (Reg. I) Dept., Dated 18.01.1999.]

, the Committees constituted under Rule 4 (2) shall take up the revision of Market Value Guidelines within time frames stipulated by the Commissioner and Inspector General of Registration and Stamps.

(3)

Such revised values shall be implemented on a date to be fixed by the Commissioner and Inspector General of Registration and Stamps.

10.

Furnishing of Extracts of Market values to Committee in certain cases :

- The Registering Officers shall furnish to the Convenor of the Committee mentioned in Rules 4 (2) and 13 and extract of the Market values in respect of the instruments presented for registration in which consideration or Market Value of the subject property in which is more than that specified in the Market Value Guidelines, by the 30th day of the following months.

11.

Land Acquisition Officers to furnish copies of Awards to the Committees in certain cases :

- All the Land Acquisition Officers appointed under the Land Acquisition Act, 1894 shall, whenever the amount of compensation awarded by them or subsequently enhanced by the Courts, is higher than the Market Value Guidelines, send a copy of such award or order of the Court as the case may be, to the Convenors of the Committees mentioned in Rules 4 and 13 within thirty days from the date of payment of compensation.

12.

Summons to the public, public officers and recording statements by the Committees :

- The Committee constituted under Rules 4 (2) and 13 may, if they think fit to do so :

(a)

record the statement of the person on whom, the notice has been served and may for the purpose of inquiry :

(i)

call for any information or record from any Public Officer or Officer or Authority under the State Government or any local authority.

(ii)

record statement from any member of the public office or Authority under the State Government, or any local authority.

(b)

call upon the parties to be present on the date specified in the notice and on such other day as may be fixed by it.

13.

The Authority competent for rectification of Anomalies:

(1)

if any representation is received from parties aggrieved by the rates shown in the Market Value Guidelines or if any Officer of the Department notices anomaly, the issue shall be referred to the Committee specified in sub-rule [(2)]

[Substituted for]

and such Committee shall send proposals to the Commissioner and Inspector General for rectifying the anomaly by upward/downward revision after duly following the procedure prescribed under the Rule.

(2)

The following Committee shall be the authorities competent to rectify any anomalies arising out of revision of Market Value Guidelines taken up under these Rules.

Sl. No.

Category of area

Composition of the Committee

(1)

(2)

(3)

(1)

Urban areas covered by Rule 4 (2)(a)

1.Chairman: District Collector, concerned.

2.Members: Deputy Inspector General, concerned, Municipal Commissioner/ Chief Executive Officer or Zilla Parishad.

3. [Convenor: District Registrar/ Sub-Registrar (Market Value & Audit) of the concerned district.]

[Substituted for Convenor : District Registrar concerned by G.O. Ms. No. 600, Rev. (Regn. -I), dated 18.4.2008.]

(2)

Secunderabad Cantonment Area covered by Rule 4 (2)(b)

1.Chairman: District Collector, Hyderabad.

2.Members: Deputy Inspector General of Registration and Stamps, Hyderabad. Chief Executive Officer, Secunderabad Cantonment Board

3. Substituted for "Convenor: District

Registrar, Hyderabad" by Ibid.

3. [Convenor : District Registrar/ Sub-Registrar (Market Value & Audit) of the concerned district.]

[Substituted for "Convenor : District Registrar concerned" by G.O. Ms. No. 600, Rev. (Regn.-I), dated. 18-4-2008.]

(3)

Rural areas covered by Rule 4 (2)(c)

1.Chairman: Joint Collector concerned.

2.Members: Dy. Inspector General concerned.

Revenue Divisional Officer concerned. .

3. [Convenor: District Registrar/ Sub-Registrar (Market Value & Audit) of the concerned district.]

[Substituted for "Convenor: District Registrar concerned" by Ibid.]

(3)

Any representation received from the effected parties against the revision of Market Value Guidelines in respect of any specified area or locality, shall be referred by use Officers of the Department to the Convenors of the Committee specified under sub-rule (2), who shall place the same before the said Committee alongwith such other material as may be relevant.

(4)

The Committee thereupon shall examine the representation, make such other enquiry or inspections as may be required and arrive at appropriate market value and send a proposal to the Commissioner and Inspector General for approval.

(5)

[the rectification of anomalies shall be implemented on a date to be fixed by the Commissioner and Inspector General of Registration and Stamps.]

[Added by G.O.Ms. No. 643, Rev. (Regn. I), Dated 1.7.2009.]

14.

General control and supervision:

- It shall be competent for the Commissioner and Inspector General to issue such administrative instructions of general nature as may be required from time to time for the effective implementation of these Rules.

[Form - I]

[Substituted for forms I, I-A,II by G.O. Ms. No. 720, Rev. (Regn.I), Dept. 30-7-2010, w.e.f. 1-8-2010.]

(Rule 7)

Market Value Guidelines (Urban Properties)

A. Name of the Revenue District:

D. Effective Date of Revision:

B. Name of the Registration District:

E. District code:

C. Name of the SRO:

F. SRO Code:

Sl. No

Habitation

Local body name

Grade of local body

Ward

Block

Locality Road/Street

Value Per Sq. Yd.

Composite value per sq.ft

Remarks

1

2

3

4

5

6

7

8

9

10

Notes: Classification 01- Residential: 02-Commercial: 03-Government Land: 04-Assigned Land: 05-Notified Slum: 06-Industrial: 07-House Sites, 08-Composite value

Guidelines:

(1)

All habitations of a local body without omission shall have at least one entry against residential rate for house sites.

(2)

All columns but for 10 are to be filled without leaving blank.

(3)

Grade of local body shall be Minor Panchayat/Major Panchayat/ Panchayats under urban agglomeration/ Municipality or Notified Area/ Municipal Corporation/GHMC/ Cantonment.

(4)

Only Municipal Corporation/Municipal/Panchayat Wards and Blocks shall be mentioned.

(5)

Mention zero (0) for ward or block whichever is not applicable for that Habitation.

(6)

The columns 5, 6 are to be digits 0-9 only

(7)

Mention 'ALL' in the column (7) if entire block is having the same unit rate irrespective of locality/road/street.

(8)

Locality names recognized by local body only shall be Mentioned against column (7)

(9)

The localities identified as 01, 02, 05 and 06 Classification in urban properties specified in the above note shall be noted in the column No.7

(10)

The column No.9 Composite value is provided for mentioning the Sq.ft.rate applicable for Apartments/Flats/Portion of a Multistoried Building or part of Such-Structure in that locality.

[Form - II

[Substituted for forms I, I-A,II by G.O. Ms. No. 720, Rev. (Regn.I), Dept. 30-7-2010, w.e.f. 1-8-2010.]

]

(Rule 7)

Market Value Guide Lines (Urban Properties)

A. Name of the Revenue District:

D. Effective Date of Revision:

B. Name of the Registration District:

E. District code:

C. Name of the SRO:

F. SRO Code:

Sl. No.

Habitation

Ward

Block

Door No.

Bi-Number

Unit Rate Per Sq. Yd.

Composite Value per Sq. Ft.

Remarks

(1)

(2)

(3)

- (4)
- (5)
- (6)
- (7)
- (8)
- (9)

Guidelines:

1. The Door Numbers identified as Commercial or having higher value than the common value in the locality of same classification mentioned in the Form-1, shall be mentioned in this form.
2. Only Municipal Corporation/Municipal/Panchayat Wards and Blocks shall be mentioned.
3. Mention zero (0) for ward or block whichever is not applicable for that habitation.
4. The columns 3, 4, 5 are to be numbers only.
5. The column No.8 Composite value is provided for mentioning the Sq.ft. Rate applicable for Apartments/Flats/Portion of Multistoried Building or part of Such Structure in that locality.

Form-III

[Substituted for forms I, I-A, II by G.O. Ms. No. 720, Rev. (Regn.I), Dept. 30-7-2010, w.e.f. 1-8-2010.]

]

(Rule 7)

Market Value Guidelines (Rural Properties)

(Habitation and Classification Wise value)

A. Name of the Revenue District:

D. Effective Date of Revision:

B. Name of the Registration District:

E. District code:

C. Name of the SRO:

F. SRO Code:

Sl. No.

Revenue Village

Habitation

Local body Name

Grade of local body

Classification

Value per acre

Remarks

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)

Notes: Classification: 01.Dry land, 02, Wet Land 03. Garden 04. Agriculture Land fit for house sites 05, Land abutting NH/SH/ZPP Road/Mandal Road, 06 Government land, 07. Assigned land, 08. House sited

Guidelines:

(1)

Mention "ALL" in Column (3) if unit rate is same for all Habitations of revenue village.

(2)

Mention the name of the Local Body of the Habitation entered in column 3.

(3)

Grade of local body shall be Minor Panchayat/Major Panchayat/ Panchayats under Urban Agglomeration/ Municipality or

Notified Area/Municipal Corporation.

(4)

If unit rate is same for the above classifications enter "ALL" in column 6 with a single rate.

(5)

In Column (7) enter Acre rate.

Form - IV

[Substituted for forms I, I-A,II by G.O. Ms. No. 720, Rev. (Regn.I), Dept. 30-7-2010, w.e.f. 1-8-2010.]

]

(Rule 7)

Market Value Guidelines (Rural Properties)

(Survey Number and Classification wise Value)

A. Name of the Revenue District:

D. Effective Date of Revision:

B. Name of the Registration District:

E. District code:

C. Name of the SRO:

F. SRO Code:

Sl. No.

Revenue Village

Local Body name

Grade of local body

Survey No.

Sub-Division No.

Classification

Value per acre

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

Guidelines:

1. Only digits 0-9 are allowed in column (5) Each survey number shall have separate entry

2. Digits 0-9, alphabets and special character '/' are only allowed for column (6) Sub-Division No.

3. Enter 'ALL' in column 6 if Value is same for all sub-divisions of the Survey Numbers.

4. Grade of local body shall be Minor Panchayat/Major Panchayat/ Panchayats under Urban agglomeration/ Municipality or Notified Area/ Municipal Corporation.

5. The Survey Nos. identified with classification as 04, 05, and 08 of the note of Form-III shall be incorporated in this form.

6. The Survey Nos. identified with classification 01, 02 and 03 but having higher value than the common rate for these classification shall also be incorporated in this form.

7. Survey Nos. identified as Government lands and Assigned Lands are to be entered in prohibited property watch register (PWR)].

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Translation